

The reasonable hourly rate is that prevailing in the community for similar work. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.) The rate is measured in the market place, and reflects several factors: the level of skill necessary, time limitations, the amount to be obtained in the litigation, the attorney's reputation, and the undesirability of the case. (*Shaffer v. Superior Court* (1995) 33 Cal.App.4th 993, 1002.)

Plaintiff's counsel claims an hourly rate of \$460 for attorney Kimberly Flores, \$350 for attorney Yao Vang, and \$245 for paralegal Tim Kolb.

The Court finds the claimed hourly rates for the attorneys, while high for the local area, are within the range of rates charged in the local Merced community for the same or similar work. However, the claimed paralegal hourly rate is not representative of the rates charged in the local community. Accordingly, the Court finds it reasonable to set the hourly rate of paralegal Kolb at \$150 /hour.

A trial court may not rubberstamp a request for attorney fees, and must determine the number of hours reasonably expended. (*Donahue v. Donahue* (2010) 182 Cal.App.4th 259, 271.)

After a substantial review of the entire record and the documents offered in support of Plaintiff's motion, the court finds the time billed is excessive and finds it reasonable to reduce the hours billed. The court finds it reasonable to reduce the total time for attorney Flores by 1.6 hours, attorney Vang by 13.8 hours, and paralegal Kolb by 2.8 hours.

This results in a lodestar of \$20,444. This represents the reasonable total billed time for attorney Flores of 15.9 hours at \$460 an hour, for attorney Vang of 31.9 hours at \$350 an hour, and paralegal Kolb at 13.1 hours at \$150 an hour.

Accordingly, the Court awards attorney fees in favor of Plaintiff in the amount of \$20,444.

Attorney fees are to be paid within thirty (30) days of this Court's order.

26CV-00661

Renee Haney vs Pacific Coast Services, Inc., et al.

Motion for Final Approval

The motion for final approval of class action settlement is **GRANTED**. The hearing on the final accounting is set for June 16, 2027, at 8:15 a.m. in Courtroom 8.

The Court has already granted preliminary approval of the settlement, including finding that the amount of the settlement is fair, adequate and reasonable. Nothing has occurred since that order that would change this Court's determination.

The Court will sign the proposed order lodged with the court on August 20, 2026.

26CV-02880

Richard Howard vs Merced Community College District, et al.

Demurrer to Plaintiff's Complaint

The demurrer to the first cause of action is **SUSTAINED, WITHOUT LEAVE TO AMEND**, as to the individual named defendants. Labor Code section 1102.5 imposes liability on an employer and does not impose personal liability on individual employees. As amendment would be futile, the demurrer is sustained without leave to amend.

The demurrer to the second cause of action is **OVERRULED**. Read as a whole, and considering Defendants' equal or superior knowledge, the complaint sufficiently pleads the second cause of action. Defendants have notice of the basic facts and nature of the claim, including the substance of the statements at issue. Any evidentiary gaps can be remedied through discovery.

Motion to Strike Treble Damages from Plaintiff's Complaint

Defendant's motion to strike treble damages from Plaintiff's complaint is GRANTED IN PART AND DENIED IN PART.

As to Defendant Merced Community College District, the motion is GRANTED WITHOUT LEAVE TO AMEND as the Court finds the treble damages to be punitive in nature. As punitive damages are not available against a government entity the motion is granted without leave to amend.

Accordingly, the Court strikes from the complaint, page 19, lines 9-10, and page 25, line 7, as to Defendant Merced Community College District only.

In so far as the motion pertains to the individual Defendants, the motion is DENIED.

26CV-04129 Jason Ochoa vs Jeremy Branco

Order to Show Cause Re: Restraining Order

Appearance required. Proof of unsuccessful service of the notice of hearing on Respondent was filed August 24, 2026.

26CV-04619 Karen Marquez vs Payton Johnson

Order to Show Cause Re: Restraining Order

Appearance required. Proof of timely personal service of the notice of hearing on Respondent was filed September 2, 2026. A response was filed September 11, 2026, however it was not accompanied by a proof of service.
